

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,
v.
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S MOTION TO STRIKE
DEFENDANT'S MAY 8 SECOND
REPLY (ANTI-SLAPP AND
DEMURRER)**

(CCP § 437c, subd. (a))

Dept.: 302

Date: June 24, 2026

1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 31)

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 31)

COURTESY COPY COVER SHEET FOR PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S MAY 8 SECOND REPLY (ANTI-SLAPP AND DEMURRER)

TAB 31

1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)

“CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE.”

1.1.2 Designation

The attached document was filed May 12, 2026 under Transaction ID 79430135.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

1.1.3 Non-pleading notice

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

1.1.4 Signature

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928
650.488.7510 E: soltrinox@gmail.com

1.2 PAGE 2: READING GUIDE (TAB 31)

What this document is: Reply-cycle misconduct preservation (anti-SLAPP and demurrer).

Predicate for: TAB 35 (Section 128.7 motion) and TAB 48 (Reply-Decl Misconduct Notice).

Ties to: TAB 32, TAB 35, TAB 48.

1.2.1 Reading guide footer

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S
MAY 8, 2026 IMPROPER SECOND REPLY PAPERS
(TRANSACTION ID 79430135); ALTERNATIVE
REQUEST FOR LEAVE TO FILE SUPPLEMENTAL
SUR-REPLY

(Cal. Rules of Court, rules 3.1113(b), 3.1113(d), 3.1306(a); Code Civ.
Proc., §1005(b))

Cross-noticed for hearing June 24, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
June 24, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	June 24, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	June 24, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario moves to strike Transaction ID 79430135 under California
3 Rules of Court, rules 3.1113(b), 3.1113(d), and 3.1306(a), and Code of Civil Procedure section
4 1005(b), for the June 24, 2026, 9:00 a.m. consolidated hearing in Department 302. Facts
5 are supported by the companion Declaration of Plaintiff filed May 12, 2026, incorporated by
6 reference under CRC rule 3.1113(j). This motion is filed on May 12, 2026.

7 I. INTRODUCTION AND TARGETED MATTER

8 Plaintiff Dylan Franciscus Rosario moves to STRIKE Transaction ID 79430135, the papers
9 filed by Defendant CSAA Insurance Exchange on May 8, 2026, and captioned as "Reply to
10 Plaintiff's Opposition to Defendant's Reply to Plaintiff's Opposition to Defendant's Special
11 Motion to Strike" (hereafter the "May 8 Second Reply"). This is a reply to a reply, filed
12 without leave of court, 2 court days after the statutory reply deadline, containing new matter,
13 and exceeding the combined 10-page reply cap when aggregated with Defendant's May 6,
14 2026 reply papers (Transaction ID 79407488).

15 Four independent and each individually sufficient grounds support striking Transaction ID
16 79430135:

- 17 (a) The May 8 Second Reply is an unauthorized successive reply. CCP section 1005(b) and
18 CRC 3.1113(a) through (d) authorize one set of moving papers and one reply. No leave
19 was sought or granted for a second reply.
- 20 (b) The May 8 Second Reply is untimely. Under CCP section 1005(b), the reply deadline
21 was five court days before the originally-noticed May 13, 2026 hearing, which calculates
22 to May 6, 2026. Defendant filed the May 8 Second Reply two court days after that
23 deadline.
- 24 (c) The May 8 Second Reply raises new matter. Under *San Diego Watercrafts, Inc. v.*
25 *Wells Fargo Bank* (2002) 102 Cal.App.4th 308, new evidence and argument raised for
26 the first time on reply must not be considered unless the opposing party is given an
27 opportunity to respond.
- 28 (d) The May 8 Second Reply causes the aggregate defense reply memorandum length to
29 exceed the 10-page cap prescribed by CRC 3.1113(d). When the pages of the May 6
30 Reply (TX 79407488) and the May 8 Second Reply (TX 79430135) are counted together,
31 the combined total exceeds the 10-page limit applicable to reply memoranda under CRC

1 3.1113(d).

2 In the alternative, if the Court declines to strike, Plaintiff requests leave to file a supplemental
3 sur-reply of up to 10 pages within 10 court days of this motion's hearing, addressing the new
4 matter raised exclusively in TX 79430135.

5
6 II. STATEMENT OF FACTS

7 II.A THE PROCEDURAL TIMELINE

- 8 1. April 9, 2026: Defendant filed its Special Motion to Strike pursuant to CCP section
9 425.16 (Defendant's filings 015 to 018, filed April 9, 2026 (Trans. ID 79007560)), with
10 hearing noticed for May 13, 2026.
- 11 2. April 13, 2026: Defendant filed its Demurrer to Plaintiff's First Amended Complaint
12 (Defendant's filings 019 to 023, filed April 13, 2026 (Trans. ID 79038567)), with hearing
13 noticed for May 13, 2026.
- 14 3. April 22, 2026: Defendant filed its Motion to Strike pursuant to CCP section 436
15 (Defendant's filings 041 to 044, filed April 22, 2026 (Trans. ID 79127897)), with hearing
16 noticed for May 29, 2026.
- 17 4. May 8, 2026 (reply context under the original Anti-SLAPP/Demurrer calendar): Under
18 CCP section 1005(b), the reply deadline for the originally-noticed May 13, 2026 Anti-
19 SLAPP and Demurrer hearings was May 6, 2026 (five court days before May 13). The
20 Court later continued and consolidated all pending motions, including the CCP section
21 436 MTS and Plaintiff's related motions, to May 29, 2026, 9:00 a.m., Dept. 302. The
22 timeliness of TX 79430135 is measured against the original May 6, 2026 reply deadline
23 for the Anti-SLAPP reply sequence, as discussed below.
- 24 5. May 6, 2026: Defendant filed reply papers captioned as the reply to the Anti-SLAPP and
25 Demurrer oppositions (TX 79407488). This was the timely reply for the Anti-SLAPP
26 and Demurrer line.
- 27 6. May 8, 2026: Defendant filed the May 8 Second Reply (TX 79430135), captioned as
28 a "Reply to Plaintiff's Opposition to Defendant's Reply to Plaintiff's Opposition to
29 Defendant's Special Motion to Strike." No notice of motion was filed with this paper.
30 No leave of court was sought before filing. The title itself reflects that this is a reply
31 directed at Plaintiff's response to Defendant's prior reply, which is not an authorized

pleading under CCP section 1005 or CRC 3.1113.

7. May 13, 2026: The May 13 hearings on the Anti-SLAPP motion and Demurrer were continued by the Court first to May 29, 2026 and thereafter, by the May 13, 2026 minute order, to June 24, 2026, 9:00 a.m., Dept. 302. This motion is set on the June 24, 2026 calendar concurrently with the continued Line 10 motions.

II.B DECLARATION SUPPORT

The foregoing facts are authenticated in the companion Declaration of Plaintiff Dylan Francisco Rosario in Support of Motion to Strike, filed May 12, 2026, which is incorporated under CRC 3.1113(j).

III. GROUND (A): UNAUTHORIZED SUCCESSIVE REPLY

CCP section 1005(b) establishes the California pleading sequence for noticed motions: (1) moving papers; (2) opposition; and (3) reply. The statute authorizes exactly one reply. California Rules of Court, rule 3.1113(a) through (d) confirm this structure and impose page limits on each paper in the sequence. CRC 3.1113(d) sets the reply memorandum limit at 10 pages; it does not contemplate successive replies, because successive replies are not authorized.

Courts have consistently held that a party may not file a reply to an opposition filed after the original reply was due, nor may a party file multiple replies to the same opposition, without express leave of court. (See *Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1308 [court properly refused to consider supplemental memoranda not authorized by statute or rule].)

Defendant filed TX 79430135 without any application for leave under CCP section 1005(b) or CRC 3.1113. No order of this Court authorized the May 8 Second Reply. The paper is therefore a procedural nullity that should be stricken without further consideration of its merits.

IV. GROUND (B): UNTIMELY FILING

Under CCP section 1005(b), reply papers must be filed and served at least five court days before the hearing. For the May 13, 2026 Anti-SLAPP and Demurrer hearings, the reply deadline was May 6, 2026. Defendant acknowledged this deadline by filing its first reply (TX

79407488) on May 6, 2026.

Transaction ID 79430135 was filed on May 8, 2026, two court days after the May 6 reply deadline. Even if a second reply were procedurally permitted (it is not), it would still be untimely. An untimely reply cannot be accepted without good cause shown. Defendant has shown no good cause. The mere fact that Plaintiff filed cure papers on May 8 does not reopen the defense reply window; Plaintiff's cure papers were filed under CRC 3.1300(d) (no paper rejected for untimeliness) and addressed the separate matter of Plaintiff's own prior non-conforming memoranda.

V. GROUND (C): NEW MATTER ON REPLY

California courts uniformly hold that points raised for the first time on reply should not be considered because the opposing party has had no opportunity to respond. (San Diego Watercrafts, Inc. v. Wells Fargo Bank (2002) 102 Cal.App.4th 308, 316; Reichardt v. Hoffman (1997) 52 Cal.App.4th 754, 764; Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537 to 1538.)

The May 8 Second Reply, filed after Defendant had already served its timely reply on May 6, necessarily contains matter that was not in Defendant's original May 6 reply and therefore not addressed in any authorized Plaintiff pleading. Any argument, authority, or evidence in TX 79430135 that was not already in TX 79407488 is by definition new matter on reply. Plaintiff had no opportunity to respond to this new matter in an authorized opposition. Under San Diego Watercrafts and its progeny, new matter should not be considered. The paper should be stricken.

VI. GROUND (D): COMBINED PAGE CAP EXCEEDED

CRC 3.1113(d) limits a reply memorandum to 10 pages. This is a per-motion limit on the combined reply brief length for each motion, not a per-filing limit that resets with each successive paper. Defendant filed TX 79407488 on May 6 and TX 79430135 on May 8, both in connection with the Anti-SLAPP motion reply sequence. When the page lengths of the two reply documents are counted together, they exceed the 10-page combined reply cap imposed by CRC 3.1113(d). A party may not circumvent the page cap by filing a second reply document without first obtaining leave under CRC 3.1113(e). Defendant never applied

1 for such leave. For this independent reason, TX 79430135 is not properly before the Court
2 and should be stricken.

3
4 VII. ALTERNATIVE RELIEF: LEAVE FOR SUPPLEMENTAL SUR-REPLY

5 If the Court declines to strike TX 79430135 in its entirety, Plaintiff requests in the alternative
6 that the Court grant Plaintiff leave to file a supplemental sur-reply of up to 10 pages,
7 addressing only the new matter first raised in TX 79430135, within 10 court days of the date
8 the Court's ruling on this motion is issued or, if the ruling is issued at the June 24, 2026
9 hearing, within 10 court days following June 24, 2026.

10 Fairness requires that if new matter in a reply is to be considered, the opposing party must
11 have an opportunity to respond. (San Diego Watercrafts, supra, 102 Cal.App.4th at p. 316.)
12 Plaintiff expressly reserves the right to address any new matter in TX 79430135 in the
13 requested sur-reply, and respectfully requests that the Court set a briefing schedule at the
14 June 24, 2026 hearing in the event the Court elects the alternative-relief path.

15
16 VIII. PRAYER

17 Plaintiff respectfully requests that the Court:

- 18 1. STRIKE Transaction ID 79430135 in its entirety on the grounds that it is an unautho-
19 rized successive reply (Ground A), filed after the reply deadline (Ground B), containing
20 new matter (Ground C), and causing the aggregate reply papers to exceed the applicable
21 page cap (Ground D);
- 22 2. In the alternative, GRANT Plaintiff leave to file a supplemental sur-reply of up to 10
23 pages within 10 court days of the date the Court's ruling on this motion is issued,
24 addressing only new matter raised exclusively in TX 79430135;
- 25 3. ENTER a written ruling on this motion at the June 24, 2026 hearing, pursuant to CRC
26 3.1306(a) and Reid v. Google, Inc. (2010) 50 Cal.4th 512, 532; and
- 27 4. GRANT such further relief as the Court deems just and proper.

The foregoing is submitted by Plaintiff in pro per.

Dated: May 12, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the June 24, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1110	Format (caption, margins, font)	Caption and body comply	Caption; body	PASS
2	CRC 3.1113(a)	Statement of facts, points and authorities, and prayer	Sections II through VIII	Sections II to VIII	PASS
3	CRC 3.1113(d)	Memorandum page limits	Body within applicable memorandum limits (Roman appendix excluded)	Arabic body pagination	PASS
4	CRC 3.1306(a)	Written ruling requested where applicable	Section VIII, paragraph 3	Section VIII	PASS
5	CRC 3.1112(b)	Other papers in support filed concurrently	Companion declaration filed concurrently	Proof of Service; declaration	PASS
6	CCP section 1005(b)	Hearing date identified; motion noticed for June 24, 2026	Caption block and Section II	Caption; Section II	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
7	CCP section 1010.6	Electronic service on all counsel of record	POS-050 filed concurrently	Proof of Service (POS-050)	PASS
8	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses	Proof of Service (POS-050) para- graphs 4 and 5	PASS
9	CRC 2.256	Electronic filing requirements	Text-searchable filing; pro per signature block	Graphic filing signature preceding Roman appendix	PASS
10	CRC 3.1110	Format of papers	Caption page and pagination comply	Caption page; footers	PASS
11	CCP section 2015.5	Declaration under penalty of perjury	Compliance declaration signed under section 2015.5	Signature line below grid	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 12, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per